

Level of Care Appeal:

Opening remarks:

- Provide a brief explanation of the waiver program
- Include credentials of the Agency Representative (For example, RN, SW, etc.)
- Report name, title and status as an employee of Community Long Term Care.
- Present copies of the Quick Reference Level of Care Guide
- Provide a brief overview of how a person can meet the Medicaid Nursing Facility LOC. For example, must have one numbered skilled or intermediate service and one functional deficit OR must have two functional deficits. Functional deficits indicate the need for hands on assistance more than 50% of the time.
- Clarify that if the applicant/ participant is independent with the use of an assistive device such as a walker or wheelchair, the applicant/ participant is considered independent.

Assessment Presentation:

- Distribute copies of the Assessment, Medications and any other records (For example, “The Physician’s Input Letter” or CLTC Medical Consultant’s LOC Determination, Nursing Home records, etc.) to which you will refer to in your presentation.
- State the location of the assessment visit.
- Report the date of assessment completion.
- List all persons present during the assessment.
- Provide the applicant’s/ participant’s birth date and diagnoses.
- Present the assessment section by section.
- Use specific data from the assessment such as “I observed...”, “The applicant/participant demonstrated...”, “The primary contact said...”
- Report contact with the primary care provider’s office (Medical Doctor, Nurse Practitioner or Physician’s Assistant) and relay the information received. Include the full name and title of the office staff member from whom you received the information.
- Indicate if any information or records were received from the primary care provider.
- State whether the primary care provider indicated the applicant/ participant was stable or unstable. Refer all parties to the Physician’s Input Letter or other records, if available.
- Indicate if the case was referred to the CLTC Medical Consultant for Central Office review. Refer all parties to his determination letter, if applicable.
- For a NH case, refer all parties to any Nursing Home Records used in making the Level of Care decision.

Waiver/ Beneficiary Service Appeal:

Opening remarks:

- Report name, title and status as an employee of Community Long Term Care.
- Include credentials of the Agency Representative (For example, RN, SW, etc.)
- Provide a brief explanation of the waiver service.

Presentation:

- Provide a copy of the CLTC Notification Form and the Appeals Notice which was mailed to participant and/ or primary contact at the time of the decision.
 - Provide a summary of the events leading to the appeal, including how, when and why the decision was made to deny, reduce, suspend or terminate the service.
 - Present a summary of the pre-hearing conference, if applicable.
 - Present copies of the CLTC Policy and Procedure, Scope of Service or other CLTC document to support the action.
 - Provide an explanation of the criteria which the participant must meet to receive the service.
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